Constitutional Law 1: Government Structure
Professor Fahey
Spring 2025

1. Contents: This exam has 3 questions and 3 pages (including this cover page).

2. Word limit and timing: This is a 4 hour exam. The word limit for this exam is 2400 words. Points will be deducted for exceeding that limit. Each question includes a suggested word length, which also indicates the relative weight that question will receive in grading and the relative time you should spend on it. In general, you should analyze only issues that are plausibly disputable. Please avoid long recitations of legal rules or analysis of questions not genuinely at issue in the fact pattern.

3. Materials: You may use only your casebook, the class powerpoint slides, your own notes, and any outlines you have created or meaningfully participated in creating. Students who use the electronic casebook may use it (but not any electronic functions, including a search function) for the exam.

   You may not use the internet, class recordings, hornbooks, or outlines prepared by others, nor may you cut and paste from any sources.

   Any materials you wish to use during the exam, including the electronic casebook, must be downloaded to your desktop in advance. There is no opportunity to access internet during the exam.

   It goes without saying that you should not discuss the exam or your answers with any other person until the time for handing in exams has passed.

4. Citations: You may cite materials from the syllabus in any way you like as long as they are easily identifiable.

5. Additional facts: If additional facts would help you resolve a question more clearly, please specify what facts would assist you and what impact they would have. If you need to assume that a predicate issue is resolved in a particular way in order to address a subsequent issue, you can, but be clear about what you're doing.

6. Note: This exam is designed to be answered using only the materials and concepts covered in this course. Although it may remind you of real-world events or legal disputes, the fact pattern is fictional and you should focus only on the information it provides.

Good luck!

Question 1 (1600 words; ~160 mins)

Congress has undertaken national immigration reform. As part of that effort, it has passed, and the President has signed, the following law:

> **IMMIGRATION ASSISTANCE REFORM ACT**
>
> **Section 1. Immigration Assistance Reform Act**
>
> (A) All "law enforcement officers" must provide "immigration enforcement assistance" upon request by the federal government. Terms defined in Section 2.
>
> (B) All "law enforcement officers," as defined in Section 2.A, are hereby deputized as federal immigration agents and empowered, upon request by the federal government, to act with the same authority as federal immigration agents.
>
> **Section 2. Definitions**
>
> (A) "Law enforcement officers" include state and local police officers, private security officers, and police officers of federally recognized Native American tribes.
>
> (B) "Immigration enforcement assistance" includes the following actions: (i) conducting investigations, (ii) making arrests, and (iii) detaining individuals lawfully suspected of immigration violations

For his part, the President has issued the following Executive Order to encourage state compliance with the Immigration Assistance Reform Act:

EXECUTIVE ORDER 1: IMMIGRATION ASSISTANCE REFORM ACT STATE COMPLIANCE INCENTIVES

By the power vested in me by the Constitution and laws of the United States, I hereby instruct that:

> No federal prosecutor shall prosecute any federal crime in a state or on a Native American reservation that does not fully comply with the Immigration Assistance Reform Act

Please assess the constitutionality of the Immigration Assistance Reform Act and Executive Order 1.

Question 2 (400 words; ~40 mins)

Is the Vice President constitutionally immune from criminal prosecution after leaving office?

Question 3 (400 words; ~40 mins)

The Tenth Amendment provides: "The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people."

What is the meaning, and structural significance, of the phrase "or to the people"?